Notification Waiver Determination

Mayfair Corporation – Phosphate Hill

Acquisition	Ryowa II GPS Pty Ltd (**Ryowa**), whose ultimate parent company is Mayfair Australia Corporation Pty Ltd (**Mayfair Corporation**), applied for a notification waiver in respect of its proposed acquisition of: a. all or substantially all of the assets of the Phosphate Hill fertiliser mine and manufacturing plant (**Phosphate Hill**), and b. 100% of the issued share capital in PH Queensland Gas Pty Ltd (**PHQG**) from Dyno Nobel Limited (**DNL**) and Southern Cross Operations Pty Ltd (**SCO**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	6 May 2026

Parties to the Acquisition	The acquirer, Ryowa, currently owns a minority interest in the Gladstone Power Station. Ryowa's ultimate parent company, Mayfair Corporation, is an Australia energy and resources company. The target, Phosphate Hill, is currently owned by DNL, an international explosive manufacturing business. In Australia, DNL manufactures and supplies commercial explosives and provides commercial blasting services. SCO is a wholly owned subsidiary of DNL, which currently operates in the fertiliser manufacturing business through Phosphate Hill. PHQG owns a minority interest in the Range Gas Project, a development project in Queensland's Surat Basin.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal overlap or vertical relationship between the merger parties in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.

	While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act